



सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष १२, अंक ४१(१२)]

बुधवार, जुलै २२, २०२६/आषाढ ३१, शके १९४८

[पृष्ठे १०, किंमत : रुपये २७.००

असाधारण क्रमांक ११५

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले
विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Women Farmers Empowerment Act, 2026. (Mah. Act No. XLVI of 2026), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SUPRIYA DHAWARE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XLVI OF 2026.

(First published, after having received the assent of the Governor in the
"Maharashtra Government Gazette", on the 22nd July 2026.)

An Act to provide for recognition of Women farmers and issuance of woman farmer certificates, in order to enable their access to various welfare policies, programmes, schemes and credit, to establish a Women Farmers database, a Maharashtra State Fund for Women Farmers, a Women Farmers Empowerment Cell, a Women Farmers Empowerment Council and State Monitoring Committee, and for matters connected therewith or incidental thereto.

WHEREAS a large number of women in rural areas in the State are engaged in the agricultural sector;

AND WHEREAS in view of increasing women participation in agriculture, recognition and empowerment of women farmers are essential for future growth and sustainability of agriculture, for protection of food security in an era of climate change and for the well-being of women farmers and their families;

AND WHEREAS it is expedient to provide for recognition of women farmers and issuance of woman farmer certificates in order to enable their

access to various welfare policies, programmes, schemes and credit, to establish a Women Farmers Database, a Maharashtra State Fund for Women Farmers, a Women Farmers Empowerment Cell, Women Farmers Empowerment Council and State Monitoring Committee and for matters connected therewith or incidental thereto; it is hereby enacted in the Seventy-seventh Year of the Republic of India as follows:-

Short title. **1.** This Act may be called the Maharashtra Women Farmers Empowerment Act, 2026.

Definitions. **2.** In this Act, unless the context otherwise requires,-

(a) “agriculture” includes all activities, whether for remuneration or not, related to cultivation of crops, seed production, animal husbandry, poultry, dairy farming, livestock rearing, apiculture, fodder cultivation, bee-keeping, fishing, aquaculture, sericulture, vermiculture, horticulture, floriculture, mushroom cultivation, agro-forestry, use of any land or part thereof for grazing or rab-manure, all types of composting or any other farming activity carried out through self-employment, tenurial cultivation, share cropping, or other types of cultivation including shifting cultivation, collection, use and sale of minor or non-timber forest produce by virtue of ownership rights or usufructuary rights;

(b) “Appellate Officer” means an Appellate Officer, appointed by the State Government under sub-section (2) of section 4 of the Act;

(c) “Designated Officer” means an officer designated by the State Government under sub-section (1) of section 4 of the Act;

(d) “farmer” means, any woman who is a resident of Maharashtra and who, individually or jointly with any other person, is,-

(i) engaged in agriculture, irrespective of the nature of the land ;

(ii) contributing to any type of innovation, conservation, preservation or propagation of diverse agricultural varieties of seeds, any type of farm animals and fish, cultivation methods for climate resilience, practice of integrated farming system;

(iii) adding value to primary produce or raw agricultural and animal produce by engaging in primary processing; and it includes,-

(A) an agricultural operational holder, lessee cultivator with an oral or written contract or agreement, landless cultivator, landless livestock rearer, agricultural labourer, plantation labourer, pastoralist;

(B) women engaged in agriculture in the State for at least one agricultural season in a year and migrating outside or within the State for any purpose;

(e) “Gram Sabha” means,

(i) in respect of a Scheduled Area, the *Gram Sabha* as defined under the rules made under the Panchayats (Extension to the Scheduled Areas) Act, 1996, and

40 of
1996.

(ii) in respect of any area other than a Scheduled Area, the *Gram Sabha* as defined in clause (9) of section 3 of the Maharashtra Village Panchayats Act;

III of
1959.

(f) “land” means land which is used, or capable of being used, for purposes of agriculture, and includes,-

(i) sites of farm buildings on, or appurtenant to, such land;

(ii) land on which grass grows naturally;

(iii) trees and standing crops on such land;

(iv) canals, channels, wells, pipes, reservoirs or other works constructed or maintained on such land for the supply or storage of water for the purpose of agriculture; and

(v) drainage-works, embankments, bandharas or any other works appurtenant to such land, or constructed or maintained thereon for the purposes of agriculture; and all structures and permanent fixtures on such land;

(g) "Fund" means the Maharashtra State Fund for Women Farmers established under section 11;

XL of
1965.

(h) "*Nagar Panchayat*" means a *Nagar Panchayat* constituted under the Maharashtra Municipal Councils, *Nagar Panchayats* and Industrial Townships Act, 1965 ;

(i) "prescribed" means prescribed by rules under this Act;

(j) "primary processing" means converting raw produce or material into forms suitable for consumption or for further processing;

(k) "single woman" means a woman who is above the age of 18 years and whose husband has either died or is missing, who has been deserted or judicially separated, a divorced or an unmarried woman;

(l) "State Monitoring Committee" means the State monitoring committee constituted under section 13 of the Act;

III of
1959.

(m) "Village Panchayat" means the Panchayat constituted under the Maharashtra Village Panchayats Act;

(n) "woman farmer" means any woman who has attained the age of eighteen years or above and who is a farmer;

(o) "Women Farmers Assistance Officers" means the Women Farmer Assistance Officer appointed under section 15 of the Act;

(p) "Woman Farmer Certificate" means the certificate issued by the Designated Officer to a woman under sections 5 and 6 of the Act;

(q) "Women Farmers Empowerment Cell" means the Women Farmers Empowerment Cell established under section 14 of the Act;

(r) "Women Farmers Empowerment Council" or "Council" means the Women Farmers Empowerment Council constituted under section 12 of the Act;

(s) "Women Farmers Database" means the women farmer database collected, and maintained under section 10 of the Act.

3. Every woman who has attained the age of eighteen years and residing in the area of the Village Panchayat or *Nagar Panchayat* and who is a farmer shall be eligible to be recognised as a woman farmer under this Act and may be given a Woman Farmer Certificate for the purposes of this Act.

Recognition
of Woman
Farmer.

4. (1) The State Government shall, by notification in the *Official Gazette*, designate such number of Designated Officers, who are not below the rank of Assistant Agriculture Officer for Village Panchayat areas and who are not below the rank of Agriculture Officer for *Nagar Panchayat* areas, as it thinks fit, to discharge the duties and functions under this Act.

Designated
Officers and
Appellate
Officers.

(2) The State Government shall, by notification in the *Official Gazette*, appoint such number of officers not below the rank of Taluka Agriculture Officer, to be the Appellate Officers for such areas, as it thinks fit, to exercise the powers and discharge the duties under this Act.

Issuance
of Woman
Farmer
Certificate
in Village
Panchayat
area.

5. (1) Any woman who is a farmer residing within the jurisdiction of the Village *Panchayat* may make an application to the Designated Officer for being recognised as Woman Farmer and for obtaining a Woman Farmer Certificate in such form and manner as may be prescribed.

(2) The Designated Officer shall place all the applications received under sub-section (1) before the *Gram Sabha* at the next regular meeting or at a special meeting called for this purpose.

(3) The *Gram Sabha* shall, upon applications placed before it under sub-section (2), after considering whether each applicant has been carrying out at least one of the activities as referred to in clauses (a) and (d) of section 2 of the Act, pass a resolution either accepting or rejecting such application:

Provided that, in case of rejection of any such application, the *Gram Sabha* shall provide, in writing, the reasons for such rejection in the resolution:

Provided further that, the *Gram Sabha* may also, by resolution, *suo moto* recognise those women within its jurisdiction who have not applied for a Woman Farmer Certificate under sub-section (1), but who are farmers, as women farmers and direct Designated Officer to issue them Woman Farmer Certificates.

(4) Where the *Gram Sabha*, by its resolution under sub-section (3), recognises any woman as a woman farmer, the Designated Officer shall, within a period of fifteen days from the date of passing of such resolution, issue a Woman Farmer Certificate, in such form and manner as may be prescribed.

(5) Where the *Gram Sabha*, by its resolution under sub-section (3), refuses to recognise an applicant as a woman farmer, the Designated Officer shall, within a period of seven days from the passing of the resolution, inform the applicant in writing,-

(a) the reasons for such rejection as specified in *Gram Sabha* resolution;

(b) the period within which an appeal against such rejection may be preferred; and

(c) the particulars of the Appellate Officer before whom an appeal may be filed.

(6) Any person aggrieved by,-

(a) the resolution of the *Gram Sabha* rejecting an application to recognise a woman as woman farmer under sub-section (3) may, within a period of one-hundred and twenty days from the date of such resolution, or

(b) the failure of the Designated Officer to issue a Woman Farmer Certificate within the time period specified under sub-section (4) may, after the expiry of such period and within a period of one-hundred and twenty days thereof,

may prefer an appeal to the Appellate Officer in such form and manner as may be prescribed.

(7) The Appellate Officer shall, on receipt of an appeal, after giving the parties to the appeal an opportunity of being heard, consider and dispose of such appeal with a reasoned order, within a period of thirty days from the date of its filing:

Provided that, the Appellate Officer may admit an appeal after the expiry of the period of one-hundred and twenty days if he is satisfied that the appellant was prevented by sufficient cause from filing an appeal within the said period.

(8) Where the Appellate Officer, upon hearing the appeal, is of the opinion that the appellant is a woman farmer then he shall direct the Designated Officer to issue a Woman Farmer Certificate to the appellant within a period of fifteen days from the date of order.

6. (1) Any woman who is a farmer within the jurisdiction of the *Nagar Panchayat* may make an application to the Designated Officer for being recognised as a woman farmer and for obtaining a Woman Farmer Certificate, in such form and manner as may be prescribed.

Issuance of Woman Farmer Certificate in *Nagar Panchayat* area.

(2) The Designated Officer shall place all the applications received under sub-section (1) before the *Nagar Panchayat* at its next ordinary meeting.

(3) The *Nagar Panchayat* shall, upon applications placed before it under sub-section (2), after considering whether each applicant has been carrying out at least one of the activities as referred to in clauses (a) and (d) of section 2 of the Act, pass a resolution either accepting or rejecting such application:

Provided that in case of rejection of any such application, the *Nagar Panchayat* shall provide, in writing, the reasons for such rejection in the resolution.

(4) Where the *Nagar Panchayat*, by its resolution under sub-section (3), recognises an applicant as a woman farmer, the Designated Officer shall, within a period of fifteen days from the date of passing of such resolution, issue a Woman Farmer Certificate, in such form and manner as may be prescribed.

(5) Where the *Nagar Panchayat*, by its resolution under sub-section (3), refuses to recognise an applicant as a woman farmer, the Designated Officer shall, within a period of seven days from the date of passing of the resolution, inform the applicant in writing of,-

(a) the reasons for such rejection as specified in *Nagar Panchayat* resolution;

(b) the period within which an appeal against such rejection may be preferred; and

(c) the particulars of the Appellate Officer before whom an appeal may be filed.

(6) Any person aggrieved by,-

(a) the resolution of the *Nagar Panchayat* rejecting an application to recognise a woman farmer under sub-section (3) may, within a period of one-hundred and twenty days from the date of such resolution, or

(b) the failure of the designated officer to issue a Woman Farmer Certificate within the time period specified under sub-section (4) may, after the expiry of such period and within a period of one-hundred and twenty days thereof,

may prefer an appeal to the Appellate Officer, in such form and manner as may be prescribed.

(7) The Appellate Officer shall, on receipt of an appeal, after giving the parties to the appeal an opportunity of being heard, consider and dispose of such appeal with a reasoned order, within a period of thirty days from the date of its filing:

Provided that, the Appellate Officer may admit an appeal after the expiry of the period of one-hundred and twenty days if he is satisfied that the appellant was prevented by sufficient cause from filing an appeal within the said period.

(8) Where the Appellate Officer, upon hearing the appeal, is of the opinion that the appellant is a woman farmer then he shall direct the Designated Officer to issue a Woman Farmer Certificate to the appellant within a period of fifteen days from the date of order.

Cessation
of Woman
Farmer
Certificate.

7. The Woman Farmer Certificate shall be valid till the woman remains a farmer. If a woman does not continue to be a farmer, then she shall not be entitled to the benefits of such certificates under this Act and her certificate shall be deemed to be ceased.

Utility of
Woman
Farmer
Certificate.

8. (1) A Woman Farmer Certificate shall be conclusive proof for the purpose of establishing the identity of a woman as a woman farmer for the purposes of this Act.

(2) The woman holding the Woman Farmer Certificate shall be entitled to receive the entitlements, benefits, subsidies and services under the policies, programmes and schemes notified by the State Government, from time to time, subject to such conditions as may be specified therein.

(3) The State Government may formulate, from time to time, policies, programmes and schemes for the welfare of women farmers and their groups on matters relating to —

- (a) agricultural subsidies;
- (b) distribution of seeds, fertilisers and other farm inputs;
- (c) agricultural credit, crop insurance and extension services;
- (d) facilitation of market access, transportation, storage and procurement of produce;
- (e) special assistance programmes, skill development and targeted support for single woman farmer ;
- (f) any other matter as may be determined by the State Government.

Access to
credit through
Woman
Farmer
certificate.

9. The woman farmer holding the Woman Farmer Certificate shall be entitled to suitable forms of credit under the credit policies, programmes, and schemes of the State Government, notified by the State Government, from time to time.

Establishment
of Women
Farmers
Database.

10. (1) The State Government shall collect and maintain the data of the Women Farmers for the purposes of this Act, in the prescribed manner.

(2) The Women Farmers Database shall contain the information of every woman farmer to whom a Woman Farmer Certificate has been issued under this Act.

Maharashtra
State Fund
for Women
Farmers.

11. (1) The State Government shall constitute a Maharashtra State Fund for Women Farmers and the following moneys shall be credited thereto :-

- (a) any grant from the Central Government or State Government;
- (b) any grants, donations, gifts, benefactions received from other institutions and persons ; and
- (c) any other sums as may be notified by the State Government, from time to time.

(2) The Fund shall be under the control and management of the State Government and be utilised for the following purposes:-

- (a) to implement programs and provide assistance for the welfare and development of women farmers;

- (b) financing measures for the empowerment of women farmers;
- (c) providing facilities to support and enhance the welfare of women farmers; and
- (d) such other matters as may be prescribed.

12. (1) The State Government shall by notification published in the *Official Gazette* establish a Women Farmers Empowerment Council. Establishment of Women Farmers Empowerment Council.

(2) The Women Farmers Empowerment Council shall consist of the following *ex-officio* members, namely :-

- | | |
|--|-------------------|
| (a) Chief Minister | Chairperson; |
| (b) Deputy Chief Ministers | Members; |
| (c) Minister for Agriculture | Member; |
| (d) Minister for Women and Child Development | Member; |
| (e) Minister for Rural Development | Member; |
| (f) Minister for Co-operation | Member; |
| (g) Minister for Animal Husbandry, Dairy Development and Fisheries | Member; |
| (h) Minister for Finance | Member; |
| (i) Minister for Forests | Member; |
| (j) Minister for Revenue | Member; |
| (k) Minister for Urban Development | Member; |
| (l) Minister of State for Agriculture | Member; |
| (m) Secretary, Agriculture Department | Member-Secretary. |

(3) The Women Farmers Empowerment Council shall meet at least once in a year and may also meet, as and when, required.

(4) The Women Farmers Empowerment Council shall exercise and perform the following powers and functions, namely:-

- (a) to provide overall policy direction for the implementation of the Act;
- (b) to review the status of women farmers in Maharashtra and recommend policy reforms;
- (c) to ensure convergence among various Departments for welfare of women farmers;
- (d) to approve strategies for enhancing women farmers access to credit, markets, insurance, technology, and extension services.

13. (1) The State Government shall constitute a State Monitoring Committee to monitor the implementation of this Act. Establishment of State Monitoring Committee.

(2) The State Monitoring Committee shall consist of the following members, namely :-

- | | |
|---|--------------|
| (a) Chief Secretary | Chairperson; |
| (b) Secretary, Agriculture Department | Member; |
| (c) Secretary, Finance Department | Member; |
| (d) Secretary, Women and Child Development Department | Member; |

- (e) Secretary, Rural Development Department Member;
- (f) Secretary, Forest Department Member;
- (g) Secretary, Revenue Department Member;
- (h) Secretary, Urban Development Department Member;
- (i) Secretary, Co-operation Department Member;
- (j) Secretary, Animal Husbandry, Dairy Development and Fisheries Department Member;
- (k) Commissioner of Agriculture Member-Secretary.

(3) The Committee may invite experts in the field of agriculture, markets, banking, water conservation, gender studies, law, economics, and related fields to its meetings for its assistance or advice.

(4) The Committee shall meet not less than twice in a year, and a period of not more than six months shall intervene between two successive meetings and shall observe such rules of procedure in its meetings as it may determine.

(5) The Committee shall, for the purposes of this Act, have the following duties and functions, namely-

- (a) to develop indicators and benchmarks for monitoring implementation of the Act;
- (b) to monitor the process of recognition and certification renewal of Woman Farmer Certificates;
- (c) to monitor access of women farmers to benefits, subsidies, credit, insurance, and services under various State and Central Government schemes; and
- (d) to examine grievances, bottlenecks, and delays in implementation and recommend corrective measures.

Establishment
of Women
Farmers
Empowerment
Cell.

14. (1) The State Government shall establish a Women Farmers Empowerment Cell to implement the provisions of this Act.

(2) The Women Farmers Empowerment Cell shall consist of the following *ex-officio* members, namely :-

- (a) Secretary, Agriculture Department Chairperson;
- (b) Commissioner of Agriculture Member;
- (c) Deputy Secretary, Agriculture Department Member;
- (d) Directors under Agriculture Department Members;
- (e) Director of Agriculture (Extension and Training) Member-Secretary.

(3) The Women Farmers Empowerment Cell may invite experts in the field of agriculture, markets, banking, water, gender studies, law, economics, and related fields to its meetings for their assistance or advice.

(4) The duties and functions of the Women Farmers Empowerment Cell are as follows:-

- (a) to perform as a nodal agency for implementation of the provisions of the Act;
- (b) to coordinate with all concerned Departments for delivery of benefits and services to women farmers;

(c) to provide technical and secretarial assistance to the Women Farmers Empowerment Council and State Monitoring Committee;

(d) to prepare policy, analytical reports, and recommendations for the State Government on implementation of the provisions of the Act;

(e) to conduct periodic studies and undertake situational analysis for women farmers;

(f) to promote gender-responsive agricultural technologies, mechanization and innovation;

(g) to coordinate with research institutions, universities, financial institutions, farmer producer organizations, self-help groups, and non-governmental organizations;

(h) to prepare annual reports on the implementation of the Act and submit it to the State Government.

15. (1) The State Government shall, by general or special order designate,-

Women
Farmers
Assistance
Officers.

(a) an officer not below the rank of Agriculture Officer, as Women Farmers Assistance Officer, at Block level, and

(b) an officer not below the rank of Deputy Director of Agriculture, as Women Farmers Assistance Officer, at District level.

(2) The Women Farmers Assistance Officer shall perform the following duties and functions, namely:-

(a) to assist women farmers in obtaining the Woman Farmer Certificates ;

(b) to assist the *Gram Sabhas* and *Nagar Panchayats* in recognising women farmers and issuing the Woman Farmer Certificates;

(c) to provide information to individuals or groups of women farmers in relation to their entitlements under this Act; and

(d) to assist the State Government to carry out gender-responsive extension services.

16. No suit, prosecution or other legal proceeding shall lie against any officer or employee of the State Government or any member of the Women Farmers Empowerment Cell for anything done or purported to have been done in good faith, in pursuance of the provisions of this Act or rules made thereunder.

Protection of
action taken
in good faith.

17. Save as otherwise provided in this Act, the provisions of this Act shall be in addition to, and not in derogation of, the provisions of any other law for the time being in force.

Act not in
derogation of
any other law.

18. (1) The State Government shall, by notification in the *Official Gazette*, make rules for carrying out all or any of the purposes of this Act.

Power to
make rules.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a) the form and manner in which an application may be submitted by a woman farmer to the Designated Officer under sub-section (1) of section 5;

(b) the form and manner in which the Designated Officer shall issue the Woman Farmer Certificate under sub-section (4) of section 5;

(c) the form and manner in which an appeal may be preferred to the Appellate Officer under sub-section (6) of section 5;

(d) the form and manner in which an application may be submitted by a woman farmer to the Designated Officer under sub-section (1) of section 6;

(e) the form and manner in which the designated officer shall issue the Woman Farmer Certificate under sub-section (4) of section 6;

(f) the form and manner in which an appeal may be preferred to the Appellate Officer under sub-section (6) of section 6;

(g) manner in which the Women Farmers Database is to be collected and maintained under sub-section (1) of section 10;

(h) such other matters for which the State Fund shall be utilised under clause (d) of sub-section (2) of section 11.

(i) for any other matter for which rules are required to be made under this Act.

(3) Every rule made under this Act shall be laid, as soon as may be, after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in any rule or both Houses agree that the rule should not be made, and notify their decision to that effect in the *Official Gazette*, the rule shall, from the date of publication of notification of such decision have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Power to
remove
difficulties.

19. (1) If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by order published in the *Official Gazette*, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that, no such order shall be made under this sub-section after the expiry of a period of two years from the date of commencement of this Act.

(2) Every order made under sub-section (1) shall be laid, as soon as may be, after it is made, before each House of the State Legislature.